

SENATE BILL 122

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to home school.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3050, is amended by deleting subsection (b) and substituting instead the following:

(b)

(1) Except for home schools operated under subdivision (a)(2) or (a)(3), a parent-teacher conducting a home school must provide:

(A) Notice to the local director of schools prior to each school year of the parent-teacher's intent to conduct a home school and, for purposes of reporting only, submit to the director of schools the names, number, ages, and grade levels of the children to be home schooled; and

(B) A normed curriculum to the parent-teacher's home school students that has been selected and approved by the parent-teacher.

(2) This state, an agency of this state, the local school district, or a local government shall not require a parent-teacher of a home school student to:

(A) Administer any assessment, including, but not limited to, a state-mandated standardized test or assessment such as a Tennessee comprehensive assessment program test to their home school student; or

(B) Submit any information or documentation regarding the education being provided by the parent-teacher their child at home, including, but not limited to, the curricula, textbooks, and instructional

materials selected or being used by the parent-teacher. This subdivision (b)(2)(B) does not prohibit this state or an agency of this state from requesting or receiving the information or documentation necessary to confirm that a parent-teacher is providing a normed curriculum to the parent-teacher's child at home, as required in subdivision (b)(1)(B).

(3)

(A) This state, an agency of this state, the local school district, or a local government shall not regulate, oversee, or otherwise impose any requirements on a parent-teacher conducting a home school for the parent-teacher's child or children, except as provided in this section.

(B) This subdivision (b)(3) does not prohibit this state or an agency of this state from regulating, overseeing, or otherwise imposing requirements on a parent-teacher or home school student if the parent-teacher or home school student voluntarily elects to participate in a state program that imposes certain requirements or standards on participants that exceed those established in this section, or who has otherwise applied for and received state funds for which this state or an agency of this state has promulgated rules or established requirements or standards for recipients that exceed those established in this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.